

Decided On: 3Rd October vs Amit Rana on 3 October, 2024

Author: Jyotsna Rewal Dua

Bench: Jyotsna Rewal Dua

2024:HHC:9496 IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA CMPMO No.477 of
2024 Decided on: 3rd October, 2024

Shivani

.....Petitioner

Versus

Amit Rana

.....Respondent

----- Coram Ms. Justice Jyotsna
Rewal Dua Whether approved for reporting?

For the Petitioner: Mr. Rakesh Kumar Chaudhary and Mr. Panku Choudhary, Advocates.

For the Respondent: Mr. Subhash Sharma, Advocate.

----- Jyotsna Rewal Dua, Judge
In this petition instituted under Section 24 of the Civil Procedure Code, the petitioner has prayed for transferring the proceedings filed against her by the respondent-husband under Section 13(1)(ia) of the Hindu Marriage Act, 1955 (in short 'the Act') for dissolution of marriage from the Court of learned Principal Judge, Family Court, Una to the Court of learned Additional District & Sessions Judge-cum-Family Court, Palampur, District Kangra.

_____ Whether reporters of print and electronic media may be allowed to see the order? Yes.

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2. The case set up by the petitioner is that marriage between her and the respondent was solemnized on 08.11.2019. Subsequently, she was employed on contractual basis in the National Health Mission. After more than four years of togetherness, matrimonial discord developed between the parties. The petitioner left her matrimonial home on 14.04.2024.

3. Learned counsel for the petitioner submits that it will be very difficult for the petitioner to attend the hearing of the divorce petition instituted against her by the respondent in the Court of learned Principal Judge, Family Court Una. The parents of the petitioner reside at Village Lower Pakhi, Post

Office Berghata, Tehsil Thural, District Kangra, which is about 40 kilometers from the Court at Palampur. The petitioner is not in a regular job. She is employed on contract basis. She is though earning, but not sufficiently. She is practically dependant for moral, financial and emotional well being upon her parents. In fact, it has been pleaded in the petition that the petitioner is residing with her aged parents in their home at Thural, District Kangra. According to the petitioner, respondent is earning handsomely and can easily attend the proceedings at Palampur.

2024:HHC:9496 Learned counsel for the respondent has filed the reply and opposed the petition on the ground that the petitioner is employed and is drawing salary of about Rs.25,000/- per month approximately. However, the fact remains that the employment of the petitioner is on contractual basis. Petitioner has been employed by the National Health Mission.

4. Hon'ble Apex Court in Sumita Singh Versus Kumar Sanjay and another¹; Soma Choudhury Versus Gourab Choudhary²; Rajani Kishor Pardeshi Versus Kishor Babulal Pardeshi³; Arti Rani alias Pinki Devi and another Versus Dharmendra Kumar Gupta ⁴; and Anjali Ashok Sadhwani Versus Ashok Kishinchand Sadhwani⁵, has held that it is the wife's convenience, which must be looked at in a case where she seeks transfer of the petition.

In Kulwinder Kaur alias Kulwinder Gurcharan Singh Versus Kandi Friends Education Trust and others⁶, following parameters for transfer of cases were outlined:-

(2001) 10 SCC 41 (2004) 13 SCC 462 (2005) 12 SCC 237 (2008) 9 SCC 353 AIR 2009 SC 1374 (2008) 3 SCC 659 2024:HHC:9496 "23. Reading Sections 24 and 25 of the Code together and keeping in view various judicial pronouncements, certain broad propositions as to what may constitute a ground for transfer have been laid down by Courts.

They are balance of convenience or inconvenience to the plaintiff or the defendant or witnesses; convenience or inconvenience of a particular place of trial having regard to the nature of evidence on the points involved in the suit; issues raised by the parties; reasonable apprehension in the mind of the litigant that he might not get justice in the court in which the suit is pending; important question of law involved or a considerable section of public interested in the litigation; "interest of justice" demanding for transfer of suit, appeal or other proceeding, etc. Above are some of the instances which are germane in considering the question of transfer of a suit, appeal or other proceeding. They are, however, illustrative in nature and by no means be treated as exhaustive. If on the above or other relevant considerations, the Court feels that the plaintiff or the defendant is not likely to have a "fair trial" in the Court from which he seeks to transfer a case, it is not only the power, but the duty of the Court to make such order."

In Krishna Veni Nagam Versus Harish Nagam⁷, another trend where instead of transferring the proceedings at the convenience of wife, the husband's paying travel, lodging and boarding expenses of wife and/or persons accompanying for each hearing was noticed and considered. It was observed as under:-

"14. One cannot ignore the problem faced by a husband if proceedings are transferred on account of genuine difficulties faced by the wife. The husband may find it difficult to contest proceedings at a place which is convenient to the wife. Thus, transfer is not always a solution acceptable to both the parties. It may be appropriate that available technology of videoconferencing is used where both the parties have (2017) 4 SCC 150 2024:HHC:9496 equal difficulty and there is no place which is convenient to both the parties. We understand that in every district in the country videoconferencing is now available. In any case, wherever such facility is available, it ought to be fully utilised and all the High Courts ought to issue appropriate administrative instructions to regulate the use of videoconferencing for certain category of cases. Matrimonial cases where one of the parties resides outside court's jurisdiction is one of such categories. Wherever one or both the parties make a request for use of videoconferencing, proceedings may be conducted on videoconferencing, obviating the needs of the party to appear in person. In several cases, this Court has directed recording of evidence by videoconferencing.

18. We, therefore, direct that in matrimonial or custody matters or in proceedings between parties to a marriage or arising out of disputes between parties to a marriage, wherever the defendants/respondents are located outside the jurisdiction of the court, the court where proceedings are instituted, may examine whether it is in the interest of justice to incorporate any safeguards for ensuring that summoning of defendant/respondent does not result in denial of justice. Order incorporating such safeguards may be sent along with the summons. The safeguards can be:

(i) Availability of videoconferencing facility.

(ii) Availability of legal aid service.

(iii) Deposit of cost for travel, lodging and boarding in terms of Order 25 CPC.

(iv) E-mail address/phone number, if any, at which litigant from outstation may communicate."

Recently, the Hon'ble Supreme Court in N.C.V. Aishwarya Vs. A.S. Saravana Karthik Sha⁸, has held as under:-

"9. The cardinal principle for the exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of AIR 2022 SC 4318 2024:HHC:9496 transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their

sustenance to life. Given the prevailing socio-economic paradigm in Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

Keeping in view the law laid down by the Hon'ble Supreme Court in the aforesaid decisions and the factual position of the instant case, the petitioner has made out a case for transfer of the divorce petition.

5. In view of above discussion, HMA Petition No.159/2024 (Amit Rana Versus Shivani), preferred by the respondent-husband before the Court of learned Principal Judge, Family Court, Una is ordered to be transferred to the Court of learned Additional District & Sessions Judge- cum-Family Court, Palampur, District Kangra, H.P. Registry is directed to convey this order forthwith to both the learned Courts below for compliance. Learned Principal Judge, Family Court, Una is directed to transfer the record pertaining to above-numbered petition forthwith to the learned Additional District & Sessions Judge-cum-Family Court, Palampur, District Kangra. Parties, through their learned counsel, are directed to remain present before the learned Additional District & Sessions Judge-cum-Family Court, Palampur, District Kangra on 24.10.2024.

The petition stands disposed of in the above terms, so also the pending miscellaneous application(s), if any.

October 03, 2024
Mukesh

Jyotsna Rewal Dua
Judge